



Recognition of Divorces and Legal Separations Act 1971

1971 CHAPTER 53

An Act to amend the law relating to the recognition of divorces and legal separations.

[27th July 1971]

WHEREAS a Convention on the recognition of divorces and legal separations was opened for signature at the Hague on 1st June 1970 and was signed on behalf of the United Kingdom on that date:

And whereas with a view to the ratification by the United Kingdom of that Convention, and for other purposes, it is expedient to amend the law relating to the recognition of divorces and legal separations:

Be it therefore enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Decrees of divorce and judicial separation granted in British Isles

Recognition in Great Britain of divorces and judicial separations granted in the British Isles.

1. Subject to section 8 of this Act, the validity of a decree of divorce or judicial separation granted after the commencement of this section shall—

- (a) if it was granted under the law of Scotland, be recognised in England and Wales, and, if it was granted under the law of England and Wales, be recognised in Scotland ; and
- (b) if it was granted under the law of any other part of the British Isles, be recognised in Great Britain.

Overseas divorces and legal separations

2. Sections 3 to 5 of this Act shall have effect, subject to section 8 of this Act, as respects the recognition in Great Britain of the validity of overseas divorces and legal separations, that is to say, divorces and legal separations which—

(a) have been obtained by means of judicial or other proceedings in any country outside the British Isles ; and

(b) are effective under the law of that country.

3.—(1) The validity of an overseas divorce or legal separation shall be recognised if, at the date of the institution of the proceedings in the country in which it was obtained—

(a) either spouse was habitually resident in that country ; or

(b) either spouse was a national of that country.

(2) In relation to a country the law of which uses the concept of domicile as a ground of jurisdiction in matters of divorce or legal separation, subsection (1)(a) of this section shall have effect as if the reference to habitual residence included a reference to domicile within the meaning of that law.

(3) In relation to a country comprising territories in which different systems of law are in force in matters of divorce or legal separation, the foregoing provisions of this section (except those relating to nationality) shall have effect as if each territory were a separate country.

4.—(1) Where there have been cross-proceedings, the validity of an overseas divorce or legal separation obtained either in the original proceedings or in the cross-proceedings shall be recognised if the requirements of paragraph (a) or (b) of section 3(1) of this Act are satisfied in relation to the date of the institution either of the original proceedings or of the cross-proceedings.

(2) Where a legal separation the validity of which is entitled to recognition by virtue of the provisions of section 3 of this Act or of subsection (1) of this section is converted, in the country in which it was obtained, into a divorce, the validity of the divorce shall be recognised whether or not it would itself be entitled to recognition by virtue of those provisions.

5.—(1) For the purpose of deciding whether an overseas divorce or legal separation is entitled to recognition by virtue of the foregoing provisions of this Act, any finding of fact made (whether expressly or by implication) in the proceedings by means of which the divorce or legal separation was obtained and on the basis of which jurisdiction was assumed in those proceedings shall—

(a) if both spouses took part in the proceedings, be conclusive evidence of the fact found ; and

Recognition in Great Britain of overseas divorces and legal separations.

Grounds for recognition.

Cross-proceedings and divorces following legal separations.

Proof of facts relevant to recognition.

(b) in any other case, be sufficient proof of that fact unless the contrary is shown.

(2) In this section "finding of fact" includes a finding that either spouse was habitually resident or domiciled in, or a national of, the country in which the divorce or legal separation was obtained; and for the purposes of subsection (1)(a) of this section, a spouse who has appeared in judicial proceedings shall be treated as having taken part in them.

General provisions

Certain
existing rules
of recognition
to continue
in force.

6. This Act is without prejudice to the recognition of the validity of divorces and legal separations obtained outside the British Isles—

(a) by virtue of any rule of law relating to divorces or legal separations obtained in the country of the spouses' domicile or obtained elsewhere and recognised as valid in that country;

(b) by virtue of any enactment other than this Act;
but, save as aforesaid, no such divorce or legal separation shall be recognised as valid in Great Britain except as provided in this Act.

Non-
recognition
of divorce by
third country
no bar to
re-marriage.

7. Where the validity of a divorce obtained in any country is entitled to recognition by virtue of the foregoing provisions of this Act or by virtue of any rule or enactment preserved by section 6 of this Act, neither spouse shall be precluded from re-marrying in Great Britain on the ground that the validity of the divorce would not be recognised in any other country.

Exceptions
from
recognition.

8.—(1) The validity of—

(a) a decree of divorce or judicial separation granted under the law of any part of the British Isles; or

(b) a divorce or legal separation obtained outside the British Isles,

shall not be recognised in any part of Great Britain if it was granted or obtained at a time when, according to the law of that part of Great Britain (including its rules of private international law and the provisions of this Act), there was no subsisting marriage between the parties.

(2) Subject to subsection (1) of this section, recognition by virtue of this Act or of any rule preserved by section 6 thereof

of the validity of a divorce or legal separation obtained outside the British Isles may be refused if, and only if—

(a) it was obtained by one spouse—

(i) without such steps having been taken for giving notice of the proceedings to the other spouse as, having regard to the nature of the proceedings and all the circumstances, should reasonably have been taken ; or

(ii) without the other spouse having been given (for any reason other than lack of notice) such opportunity to take part in the proceedings as, having regard to the matters aforesaid, he should reasonably have been given ; or

(b) its recognition would manifestly be contrary to public policy.

(3) Nothing in this Act shall be construed as requiring the recognition of any findings of fault made in any proceedings for divorce or separation or of any maintenance, custody or other ancillary order made in any such proceedings.

9. Notwithstanding anything in the Government of Ireland Act 1920, the Parliament of Northern Ireland shall have power to make laws for purposes similar to the purposes of this Act.

Powers of Parliament of Northern Ireland.
1920 c. 67.

10.—(1) This Act may be cited as the Recognition of Divorces and Legal Separations Act 1971.

(2) In this Act “the British Isles” means the United Kingdom, the Channel Islands and the Isle of Man.

Short title, interpretation, transitional provisions and commencement.

(3) In this Act “country” includes a colony or other dependent territory of the United Kingdom but for the purposes of this Act a person shall be treated as a national of such a territory only if it has a law of citizenship or nationality separate from that of the United Kingdom and he is a citizen or national of that territory under that law.

(4) The provisions of this Act relating to overseas divorces and legal separations and other divorces and legal separations obtained outside the British Isles apply to a divorce or legal separation obtained before the date of the commencement of those provisions as well as to one obtained on or after that date and, in the case of a divorce or legal separation obtained before that date—

(a) require, or, as the case may be, preclude, the recognition of its validity in relation to any time before that date as well as in relation to any subsequent time ; but

(b) do not affect any property rights to which any person became entitled before that date or apply where the question of the validity of the divorce or legal separation has been decided by any competent court in the British Isles before that date.

(5) Section 9 of this Act shall come into operation on the passing of this Act and the remainder on 1st January 1972.